

CHAPTER 33.

An Act for the Prevention of Cruelty to Wild Animals
in Captivity. [6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

Definition of
"animal."
12 & 13 Vict.
c. 92.
17 & 18 Vict.
c. 39.

Cruelty to
captive
animals.

1. The word "animal" in this Act means any bird, beast, fish, or reptile which is not included in the Cruelty to Animals Acts, 1849 and 1854.

2. Any person shall be guilty of an offence who, whilst an animal is in captivity or close confinement, or is maimed, pinioned, or subjected to any appliance or contrivance for the purpose of hindering or preventing its escape from such captivity or confinement, shall, by wantonly or unreasonably doing or omitting any act,—

cause or permit to be caused any unnecessary suffering to such animal; or

cruelly abuse, infuriate, tease, or terrify it, or permit it to be so treated.

Penalty.

3. Any person committing an offence may be proceeded against under the Summary Jurisdiction Acts, and on conviction shall for every such offence be liable to imprisonment with or without hard labour for not exceeding three months, or a fine not exceeding five pounds, and, in default of payment, to imprisonment with or without hard labour.

Limit of
Act.

39 & 40 Vict.
c. 77.

4. This Act shall not apply to any act done or any omission in the course of destroying or preparing any animal for destruction as food for mankind nor to any act permitted by the Cruelty to Animals Act, 1876, nor to the hunting or coursing of any animal which has not been liberated in a mutilated or injured state in order to facilitate its capture or destruction.

5. This Act shall not extend to Scotland.

Short title.

6. This Act may be cited for all purposes as the Wild Animals in Captivity Protection Act, 1900.

CHAPTER 34.

An Act to amend the Ancient Monuments Protection
Act, 1882. [6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. Where the Commissioners of Works are of opinion that the preservation of any monument is a matter of public interest by reason of the historic, traditional, or artistic interest attaching thereto, they may, at the request of the owner, consent to become the guardians thereof; and thereupon the Ancient Monuments Protection Act, 1882, shall apply to such monument as if the same were an ancient monument to which that Act applies as defined in that Act.

Power to
Commissioners
of Works
to become
guardians of
monuments.
45 & 46 Vict.
c. 73.

Provided, that this Act shall not authorise the Commissioners of Works to consent to become the guardians of any structure which is occupied as a dwelling-place by any person other than a person employed as a caretaker thereof, and his family.

2.—(1.) The council of any county, if they think fit, may purchase by agreement any monument situate in such county or in any adjacent county, and may, at the request of the owner, consent to become the guardians of any such monument, and may undertake or contribute towards the cost of preserving, maintaining, and managing any such monument, whether they have purchased the same or become the guardians thereof or not.

Power to
county council
to purchase
and preserve
monuments.

(2.) The powers conferred by the Ancient Monuments Protection Act, 1882, upon the owners of ancient monuments, and the incorporation by that Act of the Lands Clauses Acts for the purpose of a purchase by agreement, shall have effect in relation to a county council and to any monument as defined by this Act, and section six of the Ancient Monuments Protection Act, 1882 (which relates to penalties for injury to ancient monuments), shall apply to any monument (as so defined) of which a county council are owners or guardians.

3. The Commissioners of Works or any county council may receive voluntary contributions towards the cost of maintenance and preservation of any monument of which they may become the guardians or purchasers under the provisions of the Ancient Monuments Act, 1882, or this Act, and may enter into any agreement with the owner of such monument, or with any other person as to such maintenance and preservation and the cost thereof.

Power to
receive
voluntary
contributions
for main-
tenance of
monuments.

4. The Commissioners of Works and the council of any county may, in respect of any monument in the county or in any adjacent county of which they are the owners or guardians, but where they are guardians only then with the consent of the owners, enter into and carry into effect any agreements for the transfer from the Commissioners of Works to the council, or from the council to the Commissioners of Works, of such monument, or of any estate or interest therein, or of the guardianship thereof.

Transfer of
monuments
between
county council
and Commis-
sioners of
Works.

5. The public shall have access to any monument of which the Commissioners of Works or any county council are the owners or guardians, but where they are guardians only with the

Public to
have access
to monuments.

consent of the owner of the monument, at such times and under such regulations as the Commissioners or council shall prescribe.

Construction
and definition.

6.—(1.) In this Act the expression “monument” means any structure, erection, or monument of historic or architectural interest, or any remains thereof.

(2.) This Act shall be construed as one with the Ancient Monuments Protection Act, 1882.

52 & 53 Vict.
c. 50.

(3.) In the application of this Act to Scotland a reference to the council of any county shall be construed as a reference to any county council within the meaning of the Local Government (Scotland) Act, 1889.

Extent of
Act.

7. This Act shall not apply to Ireland.

• Short title.

8. This Act may be cited as the Ancient Monuments Protection Act, 1900, and may be cited with the Ancient Monuments Protection Acts, 1882 and 1892.

CHAPTER 35.

An Act to restrict the amount of Oil in manufactured Tobacco. [6th August 1900.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Limitation
of quantity
of oil in
tobacco.

1.—(1.) If any manufacturer of tobacco has in his custody or possession fit for sale or tenders for drawback, or if any dealer in or retailer of tobacco has in his custody or possession, any tobacco containing a greater proportion of oil than four per cent. he shall incur an excise penalty of fifty pounds and the tobacco shall be forfeited.

(2.) In calculating the proportion of oil for the purpose of this section any fatty or oily substance which is naturally present in the tobacco shall be included as oil.

50 & 51 Vict.
c. 15.

(3.) In this section the expression “fit for sale” has the meaning assigned to it by section four of the Customs and Inland Revenue Act, 1887.

Short title.

2. This Act may be cited as the Oil in Tobacco Act, 1900.